

25STCV27228 25STCV27228

County: los-angeles

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Case Number: 25STCV27228 Hearing Date: September 1, 2026 Dept: 307

9 TENTATIVE RULING 9:15 a.m., Tuesday, Sept. 1, 2026

IJEOMA

MLEMCHUKWU v. KEDREN COMMUNITY HEALTH CENTER, INC. [25STCV27228]

DEFENDANT

KEDREN COMMUNITY HEALTH CENTER INC.'S DEMURRER WITH MOTION TO STRIKE AS TO
PLAINTIFF'S COMPLAINT

MEET AND

CONFER: DEFECTIVE Defendant's

counsel only demonstrates written meet and confer efforts but fails to indicate whether the parties met and conferred telephonically, by video conference, or in-person in compliance with Code Civ. Proc. § 430.41 (Vanderford Decl., ¶ 2.)

TIMELINE:

employment discrimination based on national origin and race

11/21/2023 to 11/23/2023: Defendant Kedren

Community Health Center, Inc. ("Defendant") allegedly discriminates against Plaintiff Ijeoma Mlemchukwu ("Plaintiff") on account of her national origin (Nigerian) and her race (Black) with regards to her employment as a Registered Nurse ("RN"). Specifically, Plaintiff alleges that she was suspended and subsequently terminated for sleeping on the job, thereby treating her differently than similarly situated RNs of other races and national origins who also routinely slept on the job.

9/16/2025: Plaintiff files the Complaint,

alleging causes of action for:

1. National Origin Discrimination

2. Race Discrimination

8/6/2026: Defendant files this Demurrer and Motion to Strike. Defendant filed a notice of non-opposition on 8/27/2026. As of 8/28/2026, no opposition has been received from Plaintiff.

TENTATIVE

RULING: DEFENDANT KEDREN COMMUNITY HEALTH CENTER INC.'S DEMURRER is SUSTAINED with LEAVE TO AMEND.

DEFENDANT

KEDREN COMMUNITY HEALTH CENTER INC.'S MOTION TO STRIKE is DENIED as MOOT.

I. DEMURRER

– SUSTAINED

with LEAVE TO AMEND

Defendant

demurs to the entire Complaint pursuant to Code Civ. Proc., § 430.10, subds. (e) and (f) on the grounds that Plaintiff fails to state sufficient facts to constitute any cause of action against Defendant and that each cause of action is uncertain. Plaintiff has not opposed the motion.

As a

preliminary matter, the Court finds that the Complaint is impermissibly uncertain with respect to the legal theories alleged against Defendant. Plaintiff uses a form Complaint for personal injury and intentional tort and also identifies “civil rights” claims, but the factual allegations in the attachments to the Complaint are more consistent with employment discrimination claims. Plaintiff also fails to identify any particular legal authority for her discrimination claims to clarify whether she intends to proceed under a constitutional civil rights framework, FEHA, or some other theory. Even to the extent that Plaintiff’s claims can be construed under FEHA based on the employment-related allegations, Plaintiff has not specifically alleged the existence of an employee-employer relationship between Plaintiff and Defendant. Instead, Plaintiff only vaguely indicates that the alleged wrongdoing occurred in the context of her

employment. (Compl., at pp. 4-5.) Plaintiff must specifically identify the legal theories under which she intends to proceed to permit Defendant to reasonably respond to her claims.

Assuming

that Plaintiff intends to limit her Complaint only to employment discrimination claims, the appropriate statutory framework for such claims is FEHA. "An employee who wishes to file suit under the FEHA must exhaust the administrative remedy provided by the statute by filing a complaint with the DFEH, and must obtain from the DFEH a notice of right to sue. The timely filing of an administrative complaint before the DFEH is a prerequisite to the bringing of a civil action for damages." (Pollock v. Tri-Modal Distribution Services, Inc. (2021) 11 Cal.5th 918, 93, citing Romano v. Rockwell Internat., Inc. (1996) 14 Cal.4th 479, 492, internal quotations omitted.) In the context of FEHA, "[t]he failure to exhaust an administrative remedy is a jurisdictional, not a procedural, defect..." (Martin v. Lockheed Missiles & Space Co. (1994) 29 Cal.App.4th 1718, 1724.) Thus, "[a] complaint is vulnerable to demurrer on administrative exhaustion grounds when it fails to plead either that administrative remedies were exhausted or that a valid excuse exists for not exhausting." (Parthemore v. Col (2013) 221 Cal.App.4th 1372, 1379.) At the pleading stage, a general allegation that the plaintiff timely filed an administrative complaint with the appropriate department is typically sufficient to plead exhaustion. (Williams v. Housing Authority of Los Angeles (2004) 121 Cal.App.4th 708, 721.) In this case, Plaintiff's Complaint entirely omits any allegations as to whether Plaintiff exhausted her administrative remedies for her employment discrimination claims prior to filing this Complaint. Accordingly, the entire Complaint is subject to demurrer.

Additionally, Plaintiff also fails to plead sufficient facts to demonstrate the prima facie elements of her employment discrimination claims. To plead a claim for FEHA discrimination, a plaintiff must allege the following elements: (1) the plaintiff was a member of a protected class; (2) the plaintiff was qualified for the position sought or Plaintiff was performing competently in the position held; (3) the plaintiff suffered an adverse employment action; and (4) some other circumstance suggesting discriminatory motive. (McCaskey v. California State

Auto. Assn. (2010)

189 Cal.App.4th 947, 979; see CACI No. 2500.)

Here, although Plaintiff has adequately identified her protected characteristics (race and national origin), the remaining allegations in support of her discrimination claims are impermissibly vague and conclusory. First, the Complaint omits any facts demonstrating that she was qualified for her RN position or that she was competently performing the requirements of her RN position at the time she was suspended and later terminated. (*Guz v. Bechtel Nat. Inc.* (2000) 24 Cal.4th 317, 355 [the plaintiff's satisfactory performance of their position is a prima facie element of a FEHA discrimination claim].) For example, Plaintiff concedes that she was terminated for sleeping on the job, but she does not allege that she was satisfactorily completing her job duties while sleeping during her shifts. (Compl., at pp. 4-5.)

Second, although suspension and termination typically constitutes an "adverse employment action" under the meaning of FEHA, Plaintiff has not specifically alleged the existence of an employee-employer relationship between Plaintiff and Defendant to suggest that Defendant had a direct role in subjecting Plaintiff to the adverse action. (*Reno v. Baird* (1998) 18 Cal.4th 640, 644, italics added [FEHA "prohibits only 'an employer' from engaging in improper discrimination."]; accord *Jones v. Lodge at Torrey Pines Partnership* (2008) 42 Cal.4th 1158, 1162.)

Third, Plaintiff's allegations of discriminatory motive rest entirely on her inference that "similarly situated" RNs of other races and national origins were treated differently. (Compl., at pp. 4-5.) However, Plaintiff has not identified any specific comparators by name, title, or shift to establish disparate treatment. Nor does Plaintiff allege that the same supervisors were involved in the decision making related to the other sleeping RNs or that the circumstances under which these other employees were "sleeping on the job" were similar in nature to Plaintiff's circumstances. Thus, Plaintiff's conclusory "comparator" allegations lack sufficient factual specificity to show that her race and national origin were a "substantial motivating factor" in the adverse actions taken against her. (See *Martin v. Board of Trustees of California State University* (2023) 97 Cal.App.5th 149, 162 [a FEHA plaintiff must show that discriminatory animus was a "substantial motivating factor" in the employer's adverse action].)

Accordingly, Plaintiff fails to adequately plead the prima facie elements of her employment discrimination claims as a matter of law.

Therefore, Defendants' demurrer to the Complaint is SUSTAINED with LEAVE TO AMEND.

II. MOTION

TO STRIKE – DENIED as MOOT

Defendant moves to strike Plaintiff's prayer for punitive damages from the Complaint. Defendant does not identify any portion of the Complaint which seeks punitive damages. To the contrary, in the prayer for damages section, Plaintiff has not checked the box for punitive damages. (Compl., § 14.) In any event, in light of the above ruling on Defendant's demurrer, Plaintiff has not stated any cause of action which could support a claim for punitive damages. Accordingly, Defendant's motion to strike Plaintiff's request for punitive damages is DENIED as MOOT.

Defendant Kedren Community Health Center, Inc. to serve notice of ruling. This tentative ruling ("TR") shall be the order of the Court unless changed at the hearing and shall by this reference be incorporated into the Minute Order.

TR emailed to counsel and posted to court website on 8/31/26 at 2 p.m.